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How To Read a Charging Document

Understanding your indictment or complaint, in plain language.

The document that lists the charges against you looks intimidating and reads like another language. It is not as impenetrable as it seems. This guide shows you how it is built and what each part means, so you can read your own and follow what your lawyer tells you. Understanding it will not win your case, but it will stop the document itself from frightening you.

This explains structure, not strategy. What the charges mean for you specifically is a conversation for your lawyer. Bring your marked-up copy to them.

What this document is

A charging document formally states what the government says you did and which laws it says you broke. Depending on the court it may be called an indictment, an information, or a complaint. It is an accusation, not a finding. It is the start of the case, not the end.

The parts, top to bottom

- The caption. The top block naming the court, the parties (the government versus you), and the case number. Note your case number; you will use it constantly.
- The counts. Each numbered count is a separate charge. A case can have one count or many. Each stands on its own.
- The statute cited. Each count points to a specific law by number. That citation is what the government must prove you violated.
- The elements. The specific things the government must prove for that charge. Understanding the elements is understanding what the fight is actually about.
- The factual allegations. The story the government tells about what you supposedly did. Remember: allegation, not proof.

How to read yours, step by step

- ☐ Find and write down your case number and the court.
- ☐ Count the counts. How many separate charges are there?
- ☐ For each count, find the statute it cites.
- ☐ For each count, underline the factual allegations: the who, what, when, where the government claims.
- ☐ Mark anything you do not understand or believe is wrong. Note it for your lawyer; do not correct the document itself.

Words you will see, translated

- Count: one specific charge. Element: one thing the government must prove for a charge.
- Alleged: claimed but not yet proven.
- Indictment: charges brought by a grand jury. Information: charges brought by a prosecutor without a grand jury.
- Conspiracy: an agreement between people to commit an offense, charged as its own count.
- Forfeiture: a demand to give up property the government links to the alleged offense.

What to bring your lawyer

My case number: _____

Number of counts: _____

Questions for my lawyer:

This workbook is educational and reflects lived and professional experience. It is not legal advice and does not create an attorney-client relationship. Laws and procedures vary by jurisdiction and change over time. For advice about your situation, consult a licensed attorney in your state.

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